

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2382

By: Hill

AS INTRODUCED

An Act relating to the Supplemental Nutrition Assistance Program (SNAP); directing the Department of Human Services to adopt measures; directing the Department to enter into agreements; directing the Department to conduct reviews; directing certain households to report certain changes; prohibiting categorical eligibility; providing exception; prohibiting application of certain standards; directing the Department to make certain information available to the public; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 241.5 of Title 56, unless there is created a duplication in numbering, reads as follows:

A. The Department of Human Services shall adopt the following measures to verify eligibility in the Supplemental Nutrition Assistance Program (SNAP):

1. The Department of Human Services shall enter into the following data-matching agreements with state agencies to cross-check households enrolled in SNAP with other state data sets:

- 1 a. the Department of Human Services shall enter into a
2 data-matching agreement with the Oklahoma Lottery
3 Commission and the Oklahoma Horse Racing Commission to
4 identify households with lottery or gambling winnings,
5 or a combination thereof, of Three Thousand Dollars
6 (\$3,000.00) or more and, to the extent permissible
7 under federal law, treat this data as verified upon
8 receipt. To the extent the data may not be verified
9 upon receipt, the Department of Human Services shall
10 make referrals for further investigation to identify
11 households with winnings equal to or greater than the
12 resource limit for elderly or disabled households, as
13 defined in 7 C.F.R., Section 273.8(b),
- 14 b. on at least a monthly basis, the Department of Human
15 Services shall receive and review information from the
16 State Department of Health concerning individuals in
17 households enrolled in SNAP that indicates a change in
18 circumstances that may affect eligibility for food
19 stamps, including, but not limited to, death records,
- 20 c. on at least a quarterly basis, the Department of Human
21 Services shall receive and review information from the
22 Oklahoma Employment Security Commission concerning
23 individuals in households enrolled in SNAP that
24 indicates a change in circumstances that may affect

1 eligibility for assistance, including, but not limited
2 to, changes in employment or wages,

3 d. on at least a semi-monthly basis, the Department of
4 Human Services shall receive and review information
5 from the Oklahoma Employment Security Commission
6 concerning individuals in households enrolled in SNAP
7 that indicates a change in circumstances that may
8 affect eligibility for assistance, including, but not
9 limited to, potential changes in employment, income,
10 or assets,

11 e. on at least a quarterly basis, the Department of Human
12 Services shall receive and review information from the
13 Oklahoma Tax Commission concerning individuals in
14 households enrolled in SNAP that indicates a change in
15 circumstances that may affect eligibility for
16 assistance, including, but not limited to, potential
17 changes in income, wages, or residency as identified
18 by tax records,

19 f. on at least a monthly basis, the Department of Human
20 Services shall receive and review information from the
21 Department of Corrections concerning individuals in
22 households enrolled in SNAP that indicates a change in
23 circumstances that may affect eligibility;
24

1 2. On at least a monthly basis, the Department of Human
2 Services shall review agency records for information concerning
3 individuals in households enrolled in SNAP that indicates a change
4 in circumstances that may affect eligibility for assistance,
5 including, but not limited to, potential changes in residency as
6 identified by out-of-state electronic benefit transfer card
7 transactions;

8 3. On at least a monthly basis, the Department of Human
9 Services shall, to assess continued eligibility and act on findings,
10 review:

- 11 a. earned income information, death register information,
12 incarceration records, supplemental security income
13 information, beneficiary records, earnings
14 information, and pension information maintained by the
15 United States Social Security Administration,
- 16 b. income and employment information maintained in the
17 National Directory of New Hires database and child
18 support enforcement data maintained by the United
19 States Department of Health and Human Services,
- 20 c. payment and earnings information maintained by the
21 United States Department of Housing and Urban
22 Development, and
- 23 d. national fleeing felon information maintained by the
24 United States Federal Bureau of Investigation.

1 B. All households receiving assistance shall be subject to
2 change reporting and report changes in circumstances, pursuant to 7
3 C.F.R., Section 273.12(a)(1), within ten (10) days of the date the
4 change becomes known to the household.

5 C. In no case shall categorical eligibility, pursuant to 7
6 U.S.C., Section 2014(a) or 273.2(j)(2)(iii), be granted for any
7 noncash, in-kind, or other benefit unless expressly required by
8 federal law for SNAP. The Department of Human Services shall not
9 apply gross income standards for SNAP higher than the standards
10 specified in 7 U.S.C., Section 2014(c), unless expressly required by
11 federal law. Categorical eligibility exempting households from such
12 gross income standards requirements shall not be granted for any
13 noncash, in-kind, or other benefit, unless expressly required by
14 federal law.

15 D. The Department of Human Services shall, with all necessary
16 coordination with appropriate law enforcement authorities,
17 including, but not limited to, the Federal Bureau of Investigation,
18 the Office of the Attorney General, the Office of Inspector General,
19 and local law enforcement entities, conduct an on-site inspection of
20 authorized retailers which accept EBT card transactions to identify
21 suspicious transaction records or amounts indicating possible
22 trafficking of benefits or other criminal conduct and make referrals
23 for proper investigations under applicable law.

1 E. On at least a quarterly basis, the Department of Human
2 Services shall make available to the public on its website data from
3 findings of noncompliance and fraud investigations in SNAP for the
4 following aggregate and nonconfidential and non-personally
5 identifiable information:

- 6 a. the number of households investigated for intentional
7 program violations or fraud,
- 8 b. total number of households referred to the Office of
9 the Attorney General for prosecution,
- 10 c. improper payments and expenditures,
- 11 d. monies recovered,
- 12 e. aggregate data concerning improper payments and
13 ineligible recipients as a percentage of those
14 investigated and reviewed, and
- 15 f. aggregate amount of funds expended by electronic
16 benefit transfer card transactions in each state
17 outside of Oklahoma.

18 SECTION 2. This act shall become effective November 1, 2025.

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